

MASTER PHARMACEUTICAL SUPPLY AND COLD-CHAIN AGREEMENT

Agreement Reference No: AGR-2026-CDSCO-0492

Statutory Framework: CDSCO Schedule M & NPPA DPCO 2013

This Master Supply Agreement is entered into by and between:

BUYER: AutonoSource Healthcare Procurement Network, New Delhi, India

SUPPLIER: Bharat Biotherapeutics Labs Ltd., Genome Valley, Hyderabad, Telangana

1. SCOPE OF SUPPLY & REGULATORY COMPLIANCE

1.1 The Supplier agrees to manufacture and deliver pharmaceutical consignments including recombinant human insulin, biosimilar mAbs, and essential injectables.

1.2 All production batches must strictly comply with Revised Schedule M Good Manufacturing Practices (GMP) and current CDSCO standards. Valid Certificate of Analysis (CoA) must accompany each batch.

2. COLD-CHAIN INTEGRITY & WHO TRS 1025 SLA

2.1 All biologics and temperature-sensitive items shall be stored, handled, and transported continuously at 2°C to 8°C in accordance with WHO TRS 1025 Guidelines.

2.2 The Supplier shall equip every secondary shipping shipper with an active continuous digital IoT temperature data logger.

2.3 Any thermal excursion outside 2°C-8°C exceeding 30 cumulative minutes shall constitute a material breach, and notice must be provided to the Buyer within 24 hours.

3. STATUTORY PRICING COMPLIANCE (NPPA / DPCO 2013)

3.1 Supplier warrants that unit prices charged do not exceed the National Pharmaceutical Pricing Authority (NPPA) ceiling prices notified under Drugs (Prices Control) Order, 2013.

3.2 Any overcharged delta shall be refunded within fifteen (15) calendar days along with applicable statutory interest.

4. LIMITATION OF LIABILITY & INDEMNIFICATION

4.1 The Supplier shall indemnify, defend, and hold harmless the Buyer against any third-party adulteration, patent infringement, or regulatory non-compliance claims.

4.2 Supplier aggregate liability under this agreement shall be capped at 1.5x the total annual contract value, excluding gross negligence or deliberate non-conformance.

5. TERMINATION & CURE PERIOD

5.1 In the event of a non-critical technical breach or documentation discrepancy, the non-defaulting party shall provide a 30-day written cure period before issuing formal termination.

5.2 Immediate termination without cure period is reserved strictly for CDSCO license suspension or batch contamination.

6. GOVERNING LAW & DISPUTE JURISDICTION

6.1 This agreement is governed by the substantive laws of India.

6.2 Any dispute arising out of or in connection with this contract shall be finally settled under the Indian Arbitration and Conciliation Act, 1996, with arbitration seated in New Delhi.

Executed on this 3rd day of October, 2026.

Authorized Signatory (Buyer)

Authorized Signatory (Supplier)